

Here, all three matters involve the same parties and the same neighboring properties concerning alleged damages to plaintiff's property caused by the same named defendants. In the unlimited civil action, defendants have asserted a cross-complaint against plaintiff. The court finds there are common issues of fact and law between these three cases; overlap in evidence and witnesses; convenience of parties and attorneys; relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg* 48 Cal.App.4th at 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)

For the foregoing reasons, the motion to consolidate is granted. Case nos. S-CV-0056103, R-SC-0028791, and R-SC-0028916 are ordered consolidated, and the lead case is designated as S-CV-0056103.

11. S-CV-0056153 Reddy, Pardha v. Dismukes, Bret

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants' Demurrer to Dismuke Construction and Bret Dismukes' Amended Cross-Complaint

Cross-defendants Pardha Reddy and Catherine Reddy demur to the first, second and third causes of action alleged in the first amended cross-complaint for breach of contract, fraud, and declaratory relief. Cross-complainants Dismuke Construction and Bret Dismukes oppose the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Breach of Contract

The demurrer is sustained as to cross-complainants' first cause of action for breach of contract.

To state a cause of action for breach of contract, plaintiff must plead the existence of a contract, his performance of the contract or excuse for nonperformance, defendant's breach and resulting damage. Where the existence of a written contract is alleged, plaintiff must attach and incorporate by reference a copy of the written agreement, or set

out the terms verbatim. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.)

Cross-complainants allege:

Cross-defendants agreed to pay cross-complainants for work performed. Cross-defendants and cross-complainants entered into various agreements, both written, verbal and implied-in-fact. The written contracts are attached hereto as Exhibit A.

Cross-complainant and cross-defendant entered into multiple agreements, they were written and/or verbal and/or implied-in-fact agreement which provided the parties would fairly and honestly handle the agreements and uphold their promises. To date, cross-complainant has discovered that cross-defendant refuses to honor the promises. Cross-defendant failed to fully perform the obligations, particularly with respect to the contracts as required. Predictably, cross-complainant has suffered damages and monetary sums as a result of cross-defendant's actions. Cross-complainant did all, or substantially all, of the significant things that the contract required him to do or was excused from doing those things. All conditions required by the contract for cross-defendant's performance had occurred or were excused. Cross-defendant failed to do as the contract required it to do. As a proximate result of defendant's said breach of contract, cross-complainant has sustained damages.

(Am. cross-complaint, ¶¶ 9, 14-21.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds ... In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10 (g).) “It is clear that the pleader must specify whether the contract is written or oral when his cause of action rests on an express contract.” (*Moya v. Northrup* (1970) 10 Cal.App.3d 276, 281.)

Cross-complainants attach the purported written agreements as Exhibit A. Cross-complainants otherwise fail to plead the terms of any alleged oral contracts or implied contracts, rendering the claim uncertain. Cross-complainants also fail to allege what terms of the written, oral, and implied contracts were breached.

Fraud / Misrepresentation

The demurrer is sustained as to cross-complainants' second cause of action for fraud and deceit.

To state a claim for fraud, plaintiff must allege the following elements: a

misrepresentation, with knowledge of its falsity, with the intent to induce another's reliance, actual and justifiable reliance, and resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.) Fraud must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* 245 Cal.App.4th 821, 838.) The first amended cross-complaint falls short of these pleading requirements.

Declaratory Relief

Cross-complainants' third cause of action for declaratory relief rests entirely on the defective allegations supporting the first and second causes of action. In light of the court's ruling sustaining the demurrer as to the first and second causes of action, the demurrer is also sustained as to the third cause of action.

Conclusion

The demurrer is sustained in its entirety with leave to amend. Any second amended cross-complaint shall be filed and served on or before **September 28, 2026**.

12. S-CV-0056853 Spanos, Stefani v. Woodstream Golden Sands

Defendants' Demurrer to Plaintiff's Complaint

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) demur to the second and seventh causes of action for nuisance and retaliatory eviction. FPI separately demurs to the third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment, and sixth cause of action for constructive eviction. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

Defendants' request for judicial notice of the parties' lease agreement is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only